

POLITY 31

NATIONAL COMMISSIONS FOR SCs, STs AND BACKWARD CLASSES

Constitutional watchdogs: evidence, advice, reports and bounded power

1

01 CONCEPT AND ROLE

CORE

- Articles 338, 338A and 338B create specialist constitutional watchdogs.
- Core cycle: monitor safeguards -> inquire complaints -> advise/evaluate -> report/recommend.
- They are investigative, advisory and recommendatory; courts and governments retain binding remedies.
- Answer line: constitutional visibility is not self-executing enforcement.

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02 HISTORY AND AMENDMENTS

CORE

A Original Article 338: President-appointed Special Officer for SCs/STs.

B 65th Amendment 1990: combined multi-member NCSC/ST; first commission 12 Mar 1992.

C 89th Amendment 2003: amended 338 + inserted 338A; separate bodies from 19 Feb 2004.

D 1993 statutory NCBC -> 102nd Amendment 2018 constitutional NCBC -> 105th Amendment 2021 State/UT own SEBC lists.

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03 ARTICLES 338 / 338A / 338B

CORE

1

338 = NCSC; 338A = NCST; 338B = NCBC.

2

Clauses (1)-(4): creation, five-person composition, Presidential warrant, own procedure.

3

Clauses (5)-(9): duties, reports, civil-court tools and major-policy consultation.

4

Article 338(10) now extends only to the Anglo-Indian community.

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04 COMPOSITION AND TENURE

CORE

- Each: Chairperson + Vice-Chairperson + three other Members = five.
- President appoints by warrant under hand and seal.
- Service conditions and tenure come from Presidential rules subject to parliamentary law.
- 2004 NCSC/NCST and 2018 NCBC rules: three-year term; no more than two terms.

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05 FUNCTIONS, POWERS, CONSULTATION

CORE

A Six duties: monitor; inquire; advise development; evaluate; report/recommend; other specified functions.

B Clause (8): summons/oath, documents, affidavits, public records, evidentiary commissions, other prescribed matter.

C Procedural power != writ, conviction, damages, list amendment or reservation grant.

D Clause (9): mandatory consultation on major policy, not concurrence; 338B exception for 342A(3).

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06 REPORT ACCOUNTABILITY

CORE

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Union matter: Commission -> President -> both Houses + action memorandum + rejection reasons.

2

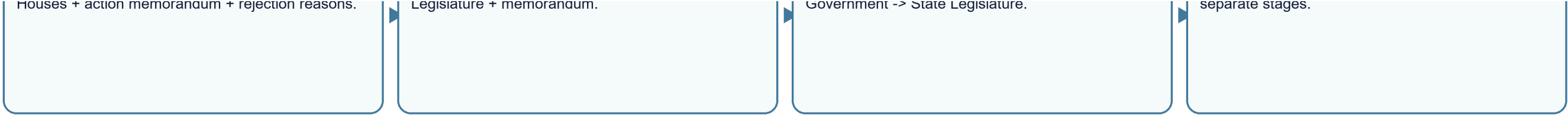
State matter: NCSC/NCST -> Governor -> State Legislature + memorandum.

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NCBC difference: Article 338B(7) -> State Government -> State Legislature.

4

Submission, laying, scrutiny and implementation are separate stages.



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07 NCSC AND NCST DOMAINS

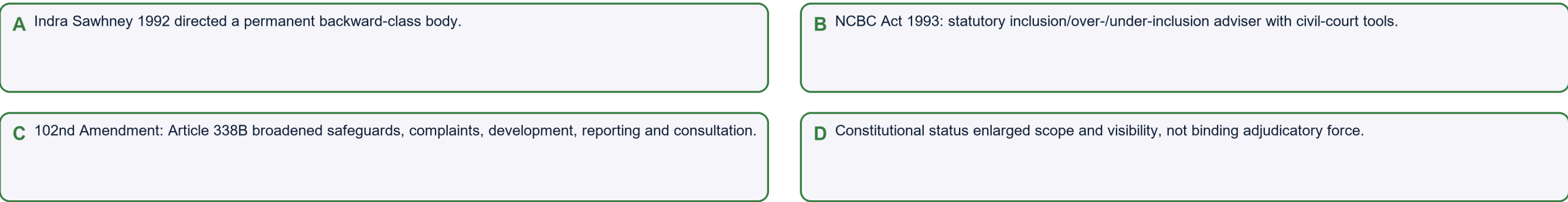
CORE

- NCSC: SC equality, untouchability, services, representation, PCR/PoA safeguard monitoring.
- NCSC does not register FIRs, prosecute, try or sentence.
- NCST 2005 Rules: MFP, resources, livelihood, displacement, land, forests, PESA, shifting cultivation.
- NCST monitors/advises; it does not administer Scheduled Areas or finally decide FRA claims.

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08 NCBC TRANSITION

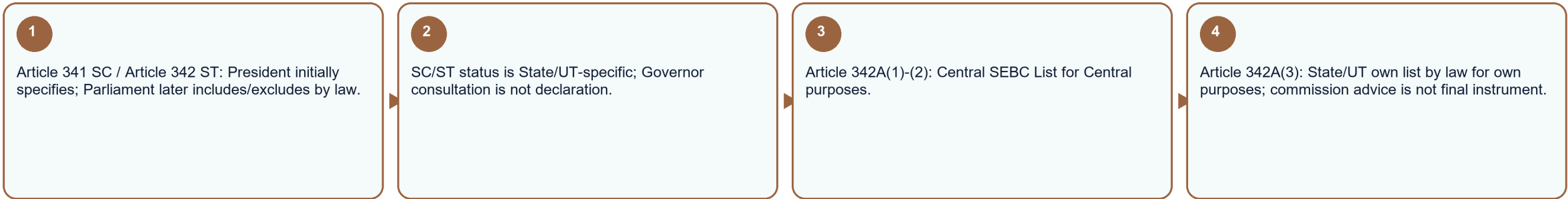
CORE



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09 LIST SPECIFICATION

CORE



10 CASES AND FEDERAL CORRECTION

CORE

specifies; Parliament later includes/excludes by law.

consultation is not declaration.

purposes.

purposes; commission advice is not final instrument.

10

10 CASES AND FEDERAL CORRECTION

CORE

- Jaishri Laxmanrao Patil 2021: majority read original 342A as displacing State identification.
- 105th Amendment: restored/clarified State/UT own-list power; adjusted 338B(9), 342A and 366(26C).
- Davinder Singh 2024: evidence-based SC sub-classification permissible; E.V. Chinnaiah overruled.
- Creamy-layer concurrences != unanimous ratio; Jarnail and Janhit remain bounded cross-links.

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11 DISTINCTIONS AND REFORM

REFORM

A Commissions monitor/advise; ministries implement; police enforce; courts adjudicate.

B State commissions complement; NHRC/NCW/NCM/NCPCR are statutory and separately mandated.

C Reform: transparent appointments, timely vacancies, regional access, data/case management, tracked responses.

D Intersectionality supports referral and joint evidence, not indiscriminate merger.

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12 TRAPS AND ANSWER SPINE

ANSWER

1

TRAPS: current five vs historical seven; civil-court tools vs court; consultation vs veto.

2

TRAPS: Governor route vs NCBC State Government route; list identity vs certificate administration.

3

ANSWER: define -> Article/amendment -> mechanism -> named evidence -> analysis -> qualification.

4

VERDICT: constitutional status works through capacity, reason-giving and legislative follow-up.